

Natthan Singh v. U.P.P.C.L. And 2 Others

Allahabad High Court · Division Bench · 8 December 2015 · Writ-C No. 65790 of 2015 · **Writ dismissed; petitioner relegated to Clause 6.5.**

HEADNOTE

A writ petition disputing electricity bills raised by the Power Corporation is not entertained where the consumer has a remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The Allahabad High Court dismissed the petition and left the petitioner to that Code remedy.

FACTUAL SUMMARY

Natthan Singh filed Writ-C No. 65790 of 2015 in the Allahabad High Court challenging bills raised by Uttar Pradesh Power Corporation Limited. The petition was confined to that billing dispute. Counsel for the Power Corporation submitted that the petitioner could object to the bills under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The Division Bench of Dilip Gupta and Mukhtar Ahmad JJ. heard the matter on 8 December 2015.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute — writ not entertained where Clause 6.5 remedy available

HOLDING

Where a consumer disputes bills raised by the Power Corporation, the High Court will not entertain a writ petition if the consumer can take recourse to Clause 6.5 of the U.P. Electricity Supply Code, 2005; the petition is dismissed and the consumer is left to that remedy. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ petition disputing electricity bills raised by the Power Corporation is not entertained where the consumer has a remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The Allahabad High Court dismissed the petition and left the petitioner to that Code remedy. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DISPUTED BILLS

The Court did not examine the bills on merits and only pointed the petitioner to Clause 6.5. ¶ 1